

SENATE No. 2633

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, October 16, 2025.

The committee on Advanced Information Technology, the Internet and Cybersecurity to whom was referred the petition (accompanied by bill, Senate, No. 48) of Michael O. Moore for legislation relative to AI-generated child sexual abuse material, report the accompanying bill (Senate, No. 2633).

For the committee,
Michael O. Moore

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An Act relative to AI-generated child sexual abuse material.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 272 of the General Laws is hereby amended by inserting after
2 section 29D the following section:-

3 Section 29E. (a) Whoever, either with knowledge that a person is a minor or while in
4 possession of such facts giving reason to know that such person is a minor, and with lascivious
5 intent, creates child sexual abuse visual material shall be punished by imprisonment in the house
6 of correction for not more than 2½ years, or by imprisonment in the state prison for not more
7 than 10 years, or by a fine of not less than \$10,000 nor more than \$50,000, or by both such fine
8 and imprisonment.

9 (b) For the purposes of this section, the determination of whether the child in any child
10 sexual abuse visual material prohibited hereunder is a minor may be made by: (i) the personal
11 testimony of the child, (ii) the testimony of a person who produced, processed, published, printed
12 or manufactured such child sexual abuse visual material that the child in the material was known
13 by the person to be a minor, (iii) testimony of a person who observed the visual material, or (iv)

expert medical testimony as to the age of the child based upon the child's physical appearance, by inspection of the visual material or by any other method authorized by any general or special law or by any applicable rule of evidence.

SECTION 2. Section 31 of chapter 272 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the figure “twenty-nine B”, in lines 2 and 3, the following words: 29D and 29E.

SECTION 3. Said section 31 of said chapter 272, as so appearing, is hereby further amended by inserting before the definition of “Disseminate” the following definition:-

“Child sexual abuse visual material”, visual material including, but not limited to, any photograph, film, video, picture or computer-generated image or picture depicting sexual conduct, sexual excitement, or a minor in a state of nudity or partial nudity that has been created, adapted, modified, mechanically or chemically reproduced or altered, including, but not limited to, through digitization, in a manner that would falsely appear to a reasonable person to be, or include, an authentic representation or depiction of a minor.

SECTION 4. Section 29C of said chapter is hereby amended by inserting after the word “child”, the first time it appears, the following words:- “including child sexual abuse visual material as defined by section 31”.

SECTION 5. Section 54B of Chapter 119 is hereby amended, in subsections (a) and (c) by striking out the words “29B, 29C, or 29D”, each time they appear, and inserting in place thereof the following words:- “29B, 29C, 29D, or 29E”.